

		The DiMaggio Defendants are entitled to reasonable attorney's fees and costs of making the motion unless the Court finds that Plaintiffs acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust. (Code Civ. Proc., § 405.38.) Plaintiffs argue they have acted with substantial justification even though they are presently unable to complete the tracing of dollars. The Court disagrees. Plaintiffs have presented virtually no evidence or information in support of their allegations regarding the real property. Thus, the Court finds that Plaintiffs have not acted with substantial justification. However, the Court finds the DiMaggio Defendants' request to be inflated. The DiMaggio Defendants are awarded attorney's fees and costs against Plaintiffs, jointly and severally, in the total amount of \$4,500.00. The Case Management Conference is continued to June 18, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
108	Ally Bank vs. Carmona, 25-01531431	Plaintiff Ally Bank ("Plaintiff") applies to the Court for a writ of possession against defendant Alejandro S. Carmona ("Defendant") regarding the subject 2021 Ford F-250 motor vehicle, Vehicle Identification No. 1FT7W2BT4MED43449. Prior to a hearing on a noticed application for writ of possession, a defendant shall be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and any supporting affidavits. (Code Civ. Proc., § 512.030(a).) If the defendant has not appeared, the notice and other papers must be personally served. (Id., § 512.030(b).) Otherwise, written notice must be given. (Id., § 1005(a)(2).) Here, there is no proof of service showing that Defendant has been served with the summons and complaint, notice of application, or the application and supporting declaration. Thus, the hearing on Plaintiff's application is CONTINUED to June 25, 2026 at 1:30 p.m. The Case Management Conference is also continued to June 25, 2026 at 1:30 p.m.

		<i>Plaintiff to give notice.</i>
109	Hernandez vs. Evergreen Royale, 24-01417052	Defendants Evergreen Royale, Ltd., and Jose Toro seek an order sustaining their demurrer to the 1st, 8th, 9th, 11th, and 13th causes of action of Plaintiff's Complaint based on failure to state sufficient facts to constitute a cause of action. Initially, a Request for Dismissal was filed on 5/18/2026 as to the 8th and 9th causes of action. As such, the demurrers to those causes of action are moot and will not be addressed. <i>MEET AND CONFER</i> Code of Civil Procedure section 430.41, subdivision (a) requires that prior to filing a demurrer, "the demurring party . . . meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer" Similarly, prior to filing a motion to strike, "the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike" (Code Civ. Proc. § 435.5(a).) Code of Civil Procedure section 430.41, subdivision (a)(3) requires that the demurring party file and serve with the demurrer a declaration stating either "[t]he means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer," or that "the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." "If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward